

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                                                                                  |                           |                                                       |                                    |                                            |
|--------------------------------------------------|--------------------------------------------------------------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|--------------------------------------------|
| Investigator:<br>Erinn White                     | Team:<br>Team # 3                                                                                | CCRB Case #:<br>201108402 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.              |
|                                                  |                                                                                                  |                           | <input type="checkbox"/> Abuse                        | <input type="checkbox"/> O.L.      | <input checked="" type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 06/24/2011 12:56 AM  | Location of Incident:<br>The intersection of § 87(2)(b) and § 87(2)(b) 7th Precinct Stationhouse | Precinct:<br>07           | 18 Mo. SOL<br>12/24/2012                              | EO SOL<br>12/24/2012               |                                            |
| Date/Time CV Reported<br>Fri, 06/24/2011 3:20 AM | CV Reported At:<br>IAB                                                                           | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 06/29/2011 1:21 PM |                                    |                                            |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |
|             |              |
|             |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Daniel Guida     | 03542  | 941862 | 007 PCT |
| 2. POM Michael Gonzalez | 28379  | 933811 | 007 PCT |

| Witness Officer(s) | Shield No | Tax No | Cmd Name |
|--------------------|-----------|--------|----------|
| 1. SGT Lilly Fu    | 00128     | 940161 | 007 PCT  |

| Officer(s)             | Allegation                                                                                                                                                                 | Investigator Recommendation |
|------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------|
| A.POM Daniel Guida     | Force: Officer Daniel Guida used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan.     |                             |
| B.POM Michael Gonzalez | Force: Officer Michael Gonzalez used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan. |                             |

### Case Summary

On Sgt. Olga Jimenez of the 7<sup>th</sup> Precinct reported this complaint on behalf of § 87(2)(b) with IAB via phone under log #11-29234. The case was referred to the CCRB and was received on July 29, 2011. On June 24, 2011 at approximately 12:56 a.m., § 87(2)(b) was arrested by PO Daniel Guida and PO Michael Gonzalez, both of the 7<sup>th</sup> Precinct. The following allegations resulted from the encounter:

**Allegation A – Force: Officer Daniel Guida used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan.**

**Allegation B – Force: Officer Michael Gonzalez used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan.**

- § 87(2)(g)  
§ 87(2)(g)  
§ 87(2)(g)

### Results of Investigation

#### Civilian Statements

##### **Complainant:** § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male who is 5'11" tall and weighs 180 pounds. He has brown hair and brown eyes

##### **Statement to Medical Personnel**

§ 87(2)(b) told EMS who responded to the 7<sup>th</sup> Precinct stationhouse that he was "fine" and that he "just was in a fight" with his significant other. At § 87(2)(b), § 87(2)(b) told personnel that he was assaulted and pushed to the ground. He denied a loss of consciousness (encl. 14a-14n).

##### **CCRB Statement**

On November 29, 2011, § 87(2)(b) was interviewed at Metropolitan Detention Center, located at 80 29<sup>th</sup> Street in Brooklyn (encl. 7a-7d).

On June 24, 2011 at approximately 12:56 a.m., § 87(2)(b) and his then girlfriend, § 87(2)(b) were walking around § 87(2)(b)'s childhood neighborhood, close to the East River in the Lower East Side of Manhattan. During this walk, the couple had been arguing. When they reached the vicinity of § 87(2)(b) and § 87(2)(b) the argument turned physical when § 87(2)(b) pushed § 87(2)(b). In response, § 87(2)(b) pushed § 87(2)(b) to the ground. § 87(2)(b) kicked § 87(2)(b) once while she was on the ground (he could not recall where on her person) and § 87(2)(b) started crying. A man approached § 87(2)(b) and asked him what he was doing. When § 87(2)(b) told the man to "mind his business," the man called 911. § 87(2)(b) stood up from the ground and she and § 87(2)(b) began to walk away from the scene.

Approximately a minute later, a marked patrol car responded to the scene and parked in the street behind § 87(2)(b). Two uniformed officers, PO Daniel Guida, who § 87(2)(b)

identified by name, and PO Michael Gonzalez, identified through investigation, exited the vehicle. § 87(2)(b) observed the man who had previously intervened point to him and state, “That’s him.” While approaching § 87(2)(b) the officers ordered § 87(2)(b) to stop and stated that he was under arrest. § 87(2)(b) continued walking. When PO Guida reached § 87(2)(b) he grabbed his arms or shoulders from behind and pushed § 87(2)(b) to the ground. § 87(2)(b) fell face first onto the ground. PO Guida put his knee in the middle of § 87(2)(b)’s back and used his hand to press the right side of § 87(2)(b)’s face to the ground, causing § 87(2)(b) to sustain lacerations on the upper right side of his face and scalp. While § 87(2)(b) repeatedly asked why he was being arrested – PO Guida only responded by stating, “Shut up.” § 87(2)(b) told the officers that nothing had happened. § 87(2)(b) told the officers that he did not do anything wrong and that he was on federal probation and could not be arrested. PO Guida used his other hand to place one of § 87(2)(b)’s arms behind his back; PO Gonzalez did the same with § 87(2)(b)’s other arm. § 87(2)(b) did not resist these actions. § 87(2)(b) was then placed in handcuffs.

Two other officers arrived in a second patrol vehicle while § 87(2)(b) was still on the ground and asked PO Guida if everything was under control. § 87(2)(b) was then lifted from the ground and brought to PO Guida’s vehicle. There were a few people watching the incident; one woman asked the officers why § 87(2)(b) was being arrested since § 87(2)(b) told them that § 87(2)(b) did not do anything wrong. § 87(2)(b) was then transported to the 7<sup>th</sup> Precinct stationhouse.

At the stationhouse, PO Guida led § 87(2)(b) to the back of the building, towards the cells. While they were standing in front of the cells, PO Guida informed § 87(2)(b) that the tie holding up § 87(2)(b)’s linen pants would have to be removed. § 87(2)(b) who was front-cuffed, verbally protested this, explaining that his pants would fall down. PO Guida pushed § 87(2)(b) from behind, causing him to fall onto his knees and then face first onto the ground. PO Guida then began grabbing at the tie on § 87(2)(b)’s pants. At the time, PO Gonzalez was working at a computer terminal located ten to fifteen feet away from the cell area; § 87(2)(b) could not recall if other prisoners or officers were present. During this interaction, § 87(2)(b) “blacked out” and lost consciousness. § 87(2)(b) however, did not know what caused him to lose consciousness. When § 87(2)(b) regained consciousness, he was alone inside of a cell. The tie had been removed from his pants and the items in his pockets (his wallet and a watch) had been removed. The beads from a bracelet § 87(2)(b) was wearing on his wrist were scattered over the floor. He did not question anyone as to why or how he lost consciousness and no one informed him about what had occurred. He did not know how much time had passed. § 87(2)(b) felt confused, disoriented, and also experienced back and neck pain when he regained consciousness. § 87(2)(b) was soon transported to Manhattan Central Booking. There, he was seen by an EMT who stated that he needed medical treatment. § 87(2)(b) was transported to a hospital near the § 87(2)(b) in Manhattan, where he was treated for his abrasions and received an MRI. § 87(2)(b) was charged

§ 87(2)(a) 160.50

**Witness:** § 87(2)(b)

- No pedigree information is available for § 87(2)(b)

**CCRB Statement**

On January 4, 2012, § 87(2)(b) provided a phone statement (encl. 7e). According to the SPRINT job for the incident, § 87(2)(b) contacted 911 and reported a woman lying on the ground screaming while being assaulted by a black male.

On the day of the incident, § 87(2)(b) observed § 87(2)(b) and a woman, who were approximately seventy-five feet away, on the street after he exited the subway. § 87(2)(b) recalled that the woman was on the ground; he did not recall if he saw § 87(2)(b) push the woman to the ground. § 87(2)(b) kicked the woman at least once while she was on the ground. Two men approached § 87(2)(b) ordering him to stop assaulting the woman. The men became involved in a screaming match. § 87(2)(b) called 911. § 87(2)(b) began walking away from the scene. § 87(2)(b) had only walked a block away from the scene when officers arrived in a patrol vehicle. The officers exited the vehicle and the two males who previously intervened identified § 87(2)(b) to the officers. The officers began approaching § 87(2)(b). § 87(2)(b), however, left the scene before the officers reached § 87(2)(b) and did not see any interactions between the officers and § 87(2)(b).

**Witness:** § 87(2)(b)

- No pedigree information is available for § 87(2)(b).

**CCRB Statement**

On March 23, 2012, § 87(2)(b) provide a phone statement (encl. 7f). According to the SPRINT job for the incident, § 87(2)(b) contacted 911 and reported a woman attempting to run from a black male, who kept knocking her to the ground.

§ 87(2)(b) stated that he witnessed § 87(2)(b) assaulting a woman on the street from his § 87(2)(b). He called 911 to report the incident. People on the street were telling § 87(2)(b) to cease his actions, but were not getting physically involved. § 87(2)(b) began running down the street just prior to the arrival of officers. Officers ran after § 87(2)(b) when they were on scene. § 87(2)(b) did not witness any interactions between § 87(2)(b) and the officers.

**Witness:** § 87(2)(b)

- § 87(2)(b) is a § 87(2)(b) black male. His remaining pedigree information is unknown.

**CCRB Statement**

On February 27, 2012, § 87(2)(b) provided a phone statement (encl. 7g). The prisoner holding pen roster indicated that § 87(2)(b) was placed in the holding cells prior to § 87(2)(b). § 87(2)(b) went to Manhattan Central Booking at the same time as § 87(2)(b). § 87(2)(b) recalled few details of the incident, but stated that he remembered one black male being “roughed up” by two police officers. When the man was being brought into the cell area, he complained that his rights were being violated. The officers pushed the man against a wall and possibly tackled him; § 87(2)(b) however, did not recall what led to these actions. He recalled that there were two to three other prisoners in the cell area at the time.

**Attempts to Contact Civilians**

§ 87(2)(b) and § 87(2)(b) were listed as being held in the prisoner cells at the same time as § 87(2)(b). A Lexis Nexis search yielded an address for § 87(2)(b) but no possible phone numbers. Letters were sent to § 87(2)(b) on February 29, 2012 and March 9, 2012 (encl. 24a-24f). As of the date of this report, these letters have not been returned by the United States Postal Service and § 87(2)(b) has not contacted the CCRB. The investigator contacted § 87(2)(b) and § 87(2)(b) who both called 911 during the incident. Both stated they did not witness § 87(2)(b)'s interaction with officers.

## **NYPD Statements:**

### **Subject Officer: OFFICER DANIEL GUIDA**

- PO Guida is a § 87(2)(b)-old white male 6'0" tall and weighs 275 pounds. He has brown hair and blue eyes.
- On June 24, 2011, PO Guida worked a tour that began at 11:15 p.m. on June 23, 2011 and ended at 7:50 a.m. on June 24, 2011. He and his partner, PO Michael Gonzalez, were dressed in uniform and assigned to the 7<sup>th</sup> Precinct's Sector C.

### **Memo Book**

At 12:30 a.m., PO Guida responded to a report of an assault at § 87(2)(b) and § 87(2)(b). At 12:32 a.m., PO Guida assisted a housing sergeant on § 87(2)(b) and § 87(2)(b) in regards to the assault. He notes that the perpetrator refused to comply with instructions and would not display his hands or allow himself to be handcuffed. He also notes that a bouncer identified § 87(2)(b) as the perpetrator of the assault. At 12:56 a.m., § 87(2)(b) was placed under arrest § 87(2)(a) 160.50. The female victim refused to identify herself or cooperate with the officers. She also refused medical treatment. At 1:00 a.m., § 87(2)(b) was transported to the stationhouse. It is noted that Sgt. Fu is the desk officer and that § 87(2)(b) refused medical attention. At 1:10 a.m., PO Guida notes "prisoner refusal to take string from pants in cell area" and that § 87(2)(b) "resisted attempts to take string" (encl. 8a-8c).

### **BADS Arrest Paperwork**

§ 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

### **CCRB Statement**

On March 21, 2012, PO Daniel Guida was interviewed at the CCRB (encl. 9a-9b). PO Guida and PO Gonzalez responded to a report of an assault in progress on § 87(2)(b) and § 87(2)(b). When they arrived on scene, they observed a housing sergeant, who was the first to arrive on scene, standing in between § 87(2)(b) and his girlfriend, attempting to keep them separated. The couple was arguing and PO Guida observed that § 87(2)(b)'s girlfriend had a visibly swollen lip. The sergeant, who PO Guida could not identify, repeatedly ordered the couple to separate. He also ordered § 87(2)(b) to remove his hands from his pockets several times. § 87(2)(b) was non-compliant and "very belligerent," refusing to show his hands and using profanity. PO Guida ordered § 87(2)(b) to remove his hands from his pockets four or five times, but § 87(2)(b) continued to refuse. PO Guida and PO Gonzalez grabbed § 87(2)(b) by his arms and attempted to place his arms behind his back so he could be handcuffed. § 87(2)(b) physically resisted by struggling against the officers, flailing his arms and body. The officers took § 87(2)(b) to the ground in order to place him in custody; PO Guida did not specify how § 87(2)(b) was taken to the ground. On the ground, § 87(2)(b) continued to struggle with the officers and kicked his feet at them. The officers soon placed § 87(2)(b) in handcuffs on the ground. After being handcuffed, § 87(2)(b) continued to scream at the officers. § 87(2)(b) told the officers that they "couldn't touch him" because he was on federal probation. The officers obtained testimony from several individuals who observed § 87(2)(b) throw his girlfriend to the ground and kick her in the face following a verbal dispute. § 87(2)(b)'s girlfriend refused to give her name or to

complete a domestic incident report. Five minutes after § 87(2)(b) was placed in custody, a patrol sergeant responded to verify his arrest and § 87(2)(b) was then transported to the stationhouse.

At the stationhouse, § 87(2)(b) refused medical attention. PO Guida, however, did not have any independent recollection of this portion of the incident, though he recorded it in his memo book. PO Guida did not recall observing any injuries on § 87(2)(b) or if he complained of any injuries.

After taking § 87(2)(b) to the front desk, PO Guida escorted § 87(2)(b) to the cell area. PO Guida removed § 87(2)(b)'s handcuffs and ordered him to remove the laces from his shoes. § 87(2)(b) complied. PO Guida then twice ordered § 87(2)(b) to remove the string from his pants. § 87(2)(b) refused. PO Guida reached for the string on § 87(2)(b)'s pants and § 87(2)(b) slapped his hand away. PO Guida grabbed § 87(2)(b)'s arms and attempted to place him in handcuffs. § 87(2)(b) resisted by struggling against PO Guida. PO Gonzalez entered the cell area and also began to struggle with § 87(2)(b). § 87(2)(b) was taken to the ground by PO Guida and PO Gonzalez in order to place him in handcuffs. During the altercation, Sgt. Fu also entered the cell area, but did not become involved. After being handcuffed, § 87(2)(b) was placed in a cell. PO Guida did not recall if there were other prisoners in the cell area at the time. PO Guida did not recall observing any injuries on § 87(2)(b) or if he complained of any injuries following this second altercation.

**Witness Officer: OFFICER MICHEAL GONZALEZ**

- PO Gonzalez is a § 87(2)(b)-old Hispanic male who is 6'0" tall and weighs 215 pounds. He has brown hair and blue eyes.
- On June 24, 2011, PO Gonzalez worked a tour that began at 11:15 p.m. on June 23, 2011 and ended at 7:50 a.m. on June 24, 2011. He and his partner, PO Daniel Guida, were dressed in uniform and assigned to the 7<sup>th</sup> Precinct's Sector C.

**Memo Book**

At 12:30 a.m., PO Gonzalez responded to an assault in progress on § 87(2)(b) and § 87(2)(b). At 12:55 p.m., PO Guida placed an individual under arrest (encl. 10a-10c).

**CCRB Statement**

On March 21, 2012, PO Michael Gonzalez was interviewed at the CCRB (encl. 11a-11b).  
§ 87(2)(g)  
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On June 24, 2012, PO Gonzalez and PO Guida were told by a number of observers that § 87(2)(b) had previously been "stomping" on his girlfriend's head. PO Gonzalez observed that § 87(2)(b)'s girlfriend had a facial and/or head injury.

PO Gonzalez and PO Guida approached § 87(2)(b) and PO Guida, who was the contact officer, ordered § 87(2)(b) to remove his hands from his pockets. § 87(2)(b) did not comply with these orders, telling the officers that he did not do anything wrong. The officers observed § 87(2)(b) looking southbound on § 87(2)(b) and shifting his body towards the same direction. The officers feared § 87(2)(b) was going to run. PO Guida again ordered § 87(2)(b) to remove his hands from his pockets and reached out to grab one of § 87(2)(b)'s arms. When PO Guida grabbed § 87(2)(b)'s arm, § 87(2)(b) responded by struggling against PO Guida. PO Gonzalez grabbed § 87(2)(b)'s other arm and the three men began to struggle. All three fell to the ground as a result of the struggle. On the ground, § 87(2)(b) placed one arm under his body to prevent

the officers from grabbing it and kicked at the officers. PO Guida pulled this arm out from underneath § 87(2)(b) and he was placed in handcuffs. Other officers then arrived on scene. An ambulance was called for § 87(2)(b)'s girlfriend. PO Gonzalez did not observe any injuries on § 87(2)(b) following the altercation.

PO Gonzalez and PO Guida transported § 87(2)(b) to the stationhouse. After bringing § 87(2)(b) to the front desk, PO Guida escorted § 87(2)(b) into the cell area and PO Gonzalez went to secure their weapons in the gun locker. The cell area is to the left of the front desk and has a wall with a pane of clear glass. The gun locker is around the corner from the cell area. After PO Gonzalez placed his and PO Guida's weapon in the gun locker, he walked to the cell area. He observed § 87(2)(b) whose handcuffs were removed, grab PO Guida by the arms. PO Guida grabbed § 87(2)(b) in return and the two became involved in a "wrestling match". PO Gonzalez did not know what circumstances led to the altercation. PO Gonzalez ran to the two men and became involved in the struggle by grabbing § 87(2)(b) arms in an attempt to place him in handcuffs; all three men fell to the ground as a result. On the ground, § 87(2)(b) continued to struggle and was placed in handcuffs. The desk sergeant, who PO Guida could not identify, entered the cell area, but did not become involved. There is no cell attendant at the precinct for male prisoners and no other officers were in the cell area. Following the altercation, PO Gonzalez did not observe any injuries on § 87(2)(b) and § 87(2)(b) did not complain of any injuries. After the second altercation, PO Gonzalez did not have any other interactions with § 87(2)(b).

**Witness Officer: SERGEANT LILY FU**

- *Sgt. Fu is a § 87(2)(b)-old Asian female who is 5'6" tall and weighs 125 pounds. She has black hair and brown eyes.*
- *On June 24, 2011, Sgt. Fu worked a tour that began at 11:05 p.m. on June 23, 2011 and ended at 8:02 a.m. on June 24, 2011. She was dressed in uniform and was assigned as desk sergeant.*

**Memo Book**

Sgt. Fu did not have any entries regarding the incident (encl. 12a-12b).

**CCRB Statement**

On March 29, 2012, Sgt. Lily Fu was interviewed at the CCRB (encl. 13a-13b). Sgt. Fu did not have any independent recollection of the incident. Sgt. Fu worked alone at the desk during her tour. She did not recall observing or interacting with § 87(2)(b) and did not recognize him when shown his photograph. Sgt. Fu is familiar with PO Guida and PO Gonzalez because they work the same tour, but does not recall interacting with them on the night of the incident.

**Medical Records**

EMS responded to the 7<sup>th</sup> Precinct stationhouse at § 87(2)(b) (encl. 14a-14l). According to the ACR, § 87(2)(b) had a contusion with lacerations on his right cheek. He refused medical transport.

§ 87(2)(b) was later transported from Manhattan Central Booking to § 87(2)(b) for medical clearance on § 87(2)(b) (encl. 14a-14l). § 87(2)(b) complained of pain to neck, head, and back. He had abrasions to his left cheek and right temporal forehead area. § 87(2)(b) was diagnosed with a facial abrasion, cervical strain, back pain, and a possible nasal fracture.

§ 87(2)(b)'s medical treatment of prisoner form notes that § 87(2)(b) had "bruises to the face and neck" and "cuts" on knuckles. It also notes that he refused medical treatment in field and at the stationhouse (encl. 14a-14l).

### **NYPD Documents**

#### **SPRINT #§ 87(2)(b) and #§ 87(2)(b)**

According to the SRPINT jobs created for the incident, two male callers contacted 911 to report a black male assaulting a female. 7<sup>th</sup> Precinct sector D and the patrol sergeant responded to the scene. Sector D made a criminal arrest on scene (encl. 15a-15c).

#### **Command Log**

Under "physical/mental condition" it is noted that § 87(2)(b) was intoxicated (encl. 16a-16k).

#### **Prisoner Holding Pen Roster**

§ 87(2)(b) was placed in the cells at 1:00am on June 24, 2011 and removed from the cells at 10:45am the following day. § 87(2)(b) was in the cells from 10:45am on June 24, 2011 and removed from the cells at § 87(2)(b). § 87(2)(b) was held in the cells from 1:40am to § 87(2)(b) (encl. 18a-18c).

### **Summons/Arrest for Incident and Disposition**

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]

### **Status of Civil Proceedings**

- On § 87(2)(b), § 87(2)(b) submitted a personal injury claim form in regards to the incident. He noted that the "officers were overly aggressive" with him and he sustained "scrapes to the right side of face and head" and an injury to his neck and back. He listed § 87(2)(b) as a witness. According to § 87(2)(b) of the Law Department, no 50-H hearings have been not be conducted or scheduled in regards as of June 18, 2012 (encl. 22).

[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]

### **Civilian CCRB History**

- This is the first CCRB complaint filed by § 87(2)(b) (encl. 3).

### **Subject Officers CCRB History**

- PO Guida has been a member of the service for five years and there are no substantiated CCRB allegations against him (encl. 1).
- PO Gonzalez has been a member of the service for eight years and there are no substantiated CCRB allegations against him. (encl. 2).



## Conclusion

### Identification of Subject Officers

PO Guida and PO Gonzalez acknowledged interacting with § 87(2)(b)

### Investigative Findings and Recommendations

**Allegation A – Force: Officer Daniel Guida used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan.**

**Allegation B – Force: Officer Michael Gonzalez used physical force against § 87(2)(b) at the intersection of § 87(2)(b) and § 87(2)(b) and at the 7th Precinct Stationhouse in Manhattan.**

It is undisputed that force was used against § 87(2)(b) at § 87(2)(b) and § 87(2)(b) and when he was instructed to remove the string from his pants at the stationhouse. In regard to the force at § 87(2)(b) and § 87(2)(b) it is undisputed that § 87(2)(b) assaulted § 87(2)(b) and attempted to flee from the officers. § 87(2)(b) was taken to the ground and placed in handcuffs. At the stationhouse, § 87(2)(b) could not describe the force used against him, stating he blacked out. PO Guida and PO Gonzalez stated that § 87(2)(b) grabbed PO Guida and the two began to wrestle. PO Gonzalez also wrestled with § 87(2)(b) and the three men fell to the ground, where § 87(2)(b) was then handcuffed. § 87(2)(b) only assumed that force was used against him due to how he felt when he regained consciousness.

Officers can use the minimum force necessary to overcome a resisting individual being placed into custody (Patrol Guide Procedure 203-11; encl. I).

§ 87(2)(g)

§ 87(2)(g)

Team: \_\_\_\_\_

:

Investigator: \_\_\_\_\_  
Signature Print Date

Supervisor: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date

Reviewer: \_\_\_\_\_  
Title/Signature                      Print                      Date